

Court No. - 21

Case :- WRIT - C No. - 6366 of 2023

Petitioner :- Smt. Sarjoo Devi

Respondent :- U.P. Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Anil Kumar Gupta, Pinky Singh

Counsel for Respondent :- C.S.C., Arti Raje

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Ms. Arti Raje, counsel for respondents prays for and is granted a week's further time to complete instructions and satisfy the Court as to how the procedure prescribed for assessment under the U.P. Electricity Supply Code, 2005 was followed.

Put up as fresh on 13.03.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.2.2023

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the recovery certificate dated 8.4.2021 issued by respondent no. 2 for recovery of electricity dues from the petitioner in a case of theft of electricity.

Ms. Arti Raje, learned counsel for the respondent Electricity Department, states that the impugned recovery has been withdrawn and that fresh order will be passed after due notice to the petitioner.

Accordingly, the instant petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply, Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.3.2023

Jaideep/-